E-mail : info@barcouncilofindia.org
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भारतीय विधिज्ञ परिषद्
BAR COUNCIL OF INDIA

जे. आर. शर्मा
कार्यकारी सचिव
J. R. SHARMA
(MA, LL.M., MBA)
Officiating Secretary

21, राउज ऐवन्यू इन्सटीटूशनल एरिया
नई दिल्ली - 110 002
21, Rouse Avenue Institutional Area
New Delhi - 110 002

Date: 20.04.2011

BCI:D: 157 /2011 (RTI/LE)

To,

Mr. S. K. Pal,
3rd Floor, 98-A,
Desh Bandhu Road East
Kolkata – 700035

Sub.: Seeking information under Right to Information Act, 2005.
Ref.: Your RTI application dated 18.03.2003 under Right to Information Act, 2005 which was received by this office on 22.03.2011.

Sir,

I am hereunder furnishing the information sought by you: -

As regards your query nos.1, 2 and 3 –

Please refer Clause – 20, Schedule – III, Rule – 11 under Part-IV Legal Education – 2008 which relate to minimum qualification needed for the faculty. The relevant clause is given below: -

"20. Minimum qualification needed for the Faculty:

Full-time faculty members including the Principal of the Centre of Legal Education shall be holders of a Master's degree or as prescribed by UGC or other such standard setting bodies. However faculty for teaching clinical program may be appointed from the retired judicial officers or from the Bar, a person with professional experience for a minimum period of 10 years. Visiting faculty from the Bar, bench or academy shall have a minimum experience of 10 years."

In view of the above it is presume that the law subject should be taught by the faculty who is having minimum LL.M. or other subject such as Art, Science, Management, Engineering, Technology or any other discipline shall possess qualification as is required under the UGC guideline in term of Clause-7, Schedule – III, Rule – 11 under Part-IV Legal Education – 2008.

As regards your query no.4 –

As per Rules of Legal Education – 2008, Bar Council of India have not prescribed any Rules in respect of appointment of SC/ST/OBC category teachers. This may be clarified from the University Grants Commission or the concerned University. Hence, your RTI application is transferred to the University Grants Commission under Section 6(3) of the Right to Information Act, 2005.

Receipt No.2513 dated 04.04.2011 for ₹ 10/- (Rupees ten only) remitted by you towards application fee is sent herewith.

Yours faithfully,

(J. R. Sharma)
Officiating Secretary/
Central Public